

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 1, 2026 (the "Effective Date") by and between CloudScale Consulting Group LLC ("CloudScale") and Apex FinTech Solutions Inc. ("Apex").

1. Scope of Services

Service Provider shall perform the services ("Services") described in one or more Statements of Work ("SOW") signed by both parties. Each SOW shall reference this Agreement and be subject to all terms and conditions contained herein.

2. Fees and Payment Terms

Client shall pay Service Provider the fees specified in each applicable SOW. Unless otherwise stated in an SOW, all invoices shall be paid within thirty (30) days of the invoice date. Late payments shall accrue interest at a rate of 1.5% per month or the maximum rate permitted by law.

3. Intellectual Property Ownership

Except as otherwise explicitly agreed in an SOW, all deliverables, reports, software, and other materials developed by Service Provider in the course of performing the Services shall be the sole and exclusive property of Client, provided that Service Provider retains ownership of its pre-existing intellectual property.

4. Warranties

Service Provider warrants that the Services shall be performed in a professional and workmanlike manner in accordance with prevailing industry standards. CLIENT'S SOLE AND EXCLUSIVE REMEDY FOR BREACH OF THIS WARRANTY SHALL BE THE RE-PERFORMANCE OF THE DEFECTIVE SERVICES BY SERVICE PROVIDER.

5. Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES. SERVICE PROVIDER'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT TO SERVICE PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

6. Term and Termination

This Agreement shall commence on the Effective Date and continue until terminated by either party upon thirty (30) days' prior written notice, provided that any active SOW shall survive termination of this Agreement until completed or separately terminated.

7. Governing Law

This Agreement and all disputes arising out of or relating to it shall be governed by, and construed in accordance with, the laws of the State of New York, excluding its conflict of laws rules.

PARTY A:

CloudScale Consulting Group LLC

PARTY B:

Apex FinTech Solutions Inc.

By: _____

Name:

Title:

By: _____

Name:

Title: